



CHAPTER 44.

An Act to make provision as to the immunities, privileges and capacities of international organisations of which His Majesty's Government in the United Kingdom and foreign governments are members ; to confer immunities and privileges on the staffs of such organisations and representatives of member governments and in respect of premises and documents of such organisations ; to remove doubts as to the extent to which representatives of foreign Powers attending international conferences and the staffs of such representatives are entitled to diplomatic immunities ; to amend the Diplomatic Privileges (Extension) Act, 1941 ; and for purposes connected with the matters aforesaid.

[17th November 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) This section shall apply to any organisation declared by Order in Council to be an organisation of which His Majesty's Government in the United Kingdom and the government or governments of one or more foreign sovereign Powers are members.

Privileges,
immunities
and capacities
of certain
international
organisations
and their
staffs.

(2) His Majesty may by Order in Council—

(a) provide that any organisation to which this section applies (hereinafter referred to as "the organisation") shall, to such extent as may be specified in the Order, have the immunities and privileges set out in Part I of the Schedule to this Act, and shall also have the legal capacities of a body corporate ;

- (b) confer upon such number of officers of the organisation, other than British subjects, as may be specified in the Order, being the holders of such high offices in the organisation as may be specified in the Order, and upon any person who is the representative of a member government on the governing body or any committee of the organisation, to such extent as may be so specified, the immunities and privileges set out in Part II of the Schedule to this Act ;
- (c) confer upon such other classes of officers and servants of the organisation (including British subjects holding such high offices as aforesaid or representing any member government as aforesaid) as may be specified in the Order to such extent as may be so specified, the immunities and privileges set out in Part III of the Schedule to this Act :

Provided that the Order in Council shall not confer any exemption from taxes or rates upon any person who is a British subject and whose usual place of abode is in the United Kingdom.

(3) Where immunities and privileges are conferred on any persons by an Order in Council made under the last foregoing subsection, the Secretary of State—

- (a) shall compile a list of the persons entitled to immunities and privileges conferred under paragraph (b) of that subsection, and may compile a list of the persons entitled to immunities and privileges conferred under paragraph (c) of that subsection ;
- (b) shall cause any list compiled under this subsection to be published in the London, Edinburgh and Belfast Gazettes ; and
- (c) whenever any person ceases or begins to be entitled to the immunities and privileges to which any such list relates, shall amend the list and cause a notice of the amendment, or, if he thinks fit, an amended list, to be published as aforesaid.

(4) Every list or notice published under the last foregoing subsection shall state the date from which the list or amendment takes or took effect ; and the fact that any person is or was included or not included at any time among the persons entitled to the immunities and privileges in question may, if a list of those persons has been so published, be conclusively proved by producing the Gazette containing the list, or, as the case may be, the last list taking effect before that time, together with the Gazettes (if any) containing notices of the amendments taking effect before that time, and by showing that the name of that person is or was at that time included or not included in the said list.

SCHEDULE.

Section I.

PART I.

Immunities and privileges of the organisation.

1. Immunity from suit and legal process.
2. The like inviolability of official archives and premises occupied as offices as is accorded in respect of the official archives and premises of an envoy of a foreign sovereign Power accredited to His Majesty.
3. The like exemption or relief from taxes and rates, other than taxes on the importation of goods, as is accorded to a foreign sovereign Power.
4. Exemption from taxes on the importation of goods directly imported by the organisation for its official use in the United Kingdom or for exportation, such exemption to be subject to compliance with such conditions as the Commissioners of Customs and Excise may prescribe for the protection of the Revenue.

PART II.

Immunities and privileges of high officers and government representatives.

1. The like immunity from suit and legal process as is accorded to an envoy of a foreign sovereign Power accredited to His Majesty.
2. The like inviolability of residence as is accorded to such an envoy.
3. The like exemption or relief from taxes and rates as is accorded to such an envoy.

PART III.

Immunities and privileges of other officers and servants.

1. Immunity from suit and legal process in respect of things done or omitted to be done in the course of the performance of official duties.
2. The following exemption or relief from taxes and rates:—
 - (a) in the case of a British subject who is a national or citizen of, or belongs to, any part of His Majesty's dominions outside the United Kingdom and would, if he were not a British subject, be qualified to receive the immunities and privileges set out in Part II of this Schedule, the like exemption or relief from taxes and rates as is accorded to an envoy of a foreign sovereign Power accredited to His Majesty;
 - (b) in any other case exemption from income tax in respect of emoluments received as an officer or servant of the organisation.

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Diplomatic Privileges (Extension) 7 & 8 GE. 6.
Act, 1944.

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(5) Where privileges and immunities are conferred under paragraph (a) or paragraph (b) of subsection (2) of this section upon any organisation or person, section seventy-eight of the War Damage Act, 1943 (which relates to the payment of contributions in respect of property owned by a foreign State or the Sovereign or envoy of a foreign State) shall apply to that organisation or person in like manner as it applies to a foreign State or the envoy of a foreign State. 6 & 7 Geo. 6. c. 21.

(6) This section and the next following section shall remain in force for the period of five years beginning with the date of the passing of this Act and shall then expire :

Provided that, if at any time while the said sections are in force an address is presented to His Majesty by each House of Parliament praying that the said sections shall be continued in force for a further period not exceeding five years after the time at which they would otherwise expire, His Majesty may by Order in Council direct that the said sections shall continue in force for that further period.

2.—(1) Every Order in Council made under subsection (1) or subsection (2) of the last foregoing section shall be laid as soon as may be before Parliament, and if an address is presented to His Majesty by either House of Parliament, within the period of forty days beginning with the day on which any such Order is laid before it, praying that the Order be annulled, His Majesty in Council may annul the Order and it shall thereupon cease to have effect, but without prejudice to the validity of anything done thereunder in the meantime or to the making of a new Order. Provisions as to Orders in Council.

(2) In reckoning the said period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(3) Section one of the Rules Publication Act, 1893, shall not apply to any such Order in Council. 56 & 57 Vict. c. 66.

(4) Any such Order in Council may be varied or revoked by a subsequent Order in Council made in like manner.

3.—(1) Where a conference is held in the United Kingdom and is attended by the representatives of His Majesty's Government in the United Kingdom and the government or governments of one or more foreign sovereign Powers, and it appears to the Secretary of State that doubts may arise as to the extent to which the representatives of such foreign Powers and members of their official staffs are entitled to diplomatic immunities, he may— Diplomatic immunities of representatives attending international conferences.

(a) compile a list of the persons aforesaid who are entitled to such immunities, and cause that list to be published in the London, Edinburgh and Belfast Gazettes ; and

- (b) whenever it appears to the Secretary of State that any person ceases or begins to be entitled to such immunities, amend the list and cause a notice of amendment or, if he thinks fit, an amended list, to be published as aforesaid ;

and every representative of a foreign Power who is for the time being included in the list shall, for the purpose of any enactment and rule of law or custom relating to the immunities of an envoy of a foreign Power accredited to His Majesty, and of the retinue of such an envoy, be treated as if he were such an envoy, and such of the members of his official staff as are for the time being included in the list shall be treated for the purpose aforesaid as if they were his retinue.

(2) Every list or notice published under the last foregoing subsection in relation to any conference shall include a statement of the date from which the list or amendment takes or took effect ; and the fact that any person is or was included or not included at any time among the persons entitled to diplomatic immunities as representatives attending the conference or as members of the official staff of any such representative may, if a list of those persons has been so published, be conclusively proved by producing the Gazette containing the list or, as the case may be, the last list taking effect before that time, together with the Gazettes (if any) containing notices of the amendments taking effect before that time, and by showing that the name of that person is or was at that time included or not included in the said list.

Reciprocal
treatment.

4. Nothing in the foregoing provisions of this Act shall be construed as precluding His Majesty from declining to accord immunities or privileges to, or from withdrawing immunities or privileges from, nationals or representatives of any Power on the ground that that Power is failing to accord corresponding immunities or privileges to British nationals or representatives.

Amendment
of Diplomatic
Privileges
(Extension)
Act, 1941.
4 & 5 Geo. 6.
c. 7.

5. Where diplomatic privileges and immunities have been extended by the Diplomatic Privileges (Extension) Act, 1941, to the members of the government of any foreign Power or of a provisional government, or to the members of any national committee or other foreign authority and, since such extension took effect, the government, committee or authority has ceased to be established, or has ceased to be wholly established, in the United Kingdom, the Act shall nevertheless continue to apply (so long as it remains in force), and be deemed never to have ceased to apply, in relation to members of that government, committee or authority, or persons employed on the official staff of any such member, who perform their functions wholly or partly in the United Kingdom.

Short title.

6. This Act may be cited as the Diplomatic Privileges (Extension) Act, 1944.